

Court No. - 39

Case :- WRIT - C No. - 5519 of 2017

Petitioner :- Sanjay Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gaurav Maurya

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Dilip Gupta,J.

Hon'ble Siddhartha Varma,J.

As prayed by learned counsel for the respondents, place this petition as fresh on 9 February 2017.

Order Date :- 7.2.2017

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(Dilip Gupta,J.)

(Siddhartha Varma,J.)

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It transpires from the record of the writ petition that the Executive Engineer as also the Junior Engineer inspected the premises of the petitioner on 21 March 2015 and found that the petitioner was consuming electricity from the transformer by cables which he had directly connected to the Rice Mill. A First Information Report was, therefore, lodged under Section 135 of the Electricity Act, 2003¹. This was registered as Case Crime No. 107 of 2015. A provisional assessment was prepared on 28 April 2015 and thereafter a final assessment order was passed on 8 June 2015. A recovery citation has been issued by the Tehsildar on 28 March 2016 as the petitioner did not deposit the amount. This petition has been filed for quashing the final assessment order as also the recovery citation.

Sri Gaurav Maurya, learned counsel appearing for the petitioner has submitted that since the First Information Report was lodged under Section 135 of the Act, proceedings should have been initiated under Chapter-VIII of the Electricity Supply Code 2005². His contention, therefore, is that the procedure as is contemplated under Clause 8.1 of the Code should have been

1 the Act

2 Code

followed and proceedings under Section 126 of the Act could not have been initiated. It is for this reason that learned counsel submitted that the petitioner can not file the appeal under Section 127 of the Act.

Sri Mahboob Ahmad, learned counsel for the respondents has, however, submitted that provisional assessment can be carried out only under the provisions of Section 126 of the Act and, therefore, the petitioner has a remedy of filing an appeal under Section 127 of the Act. In support of this, learned counsel has placed reliance upon a Division Bench judgment of this Court in **Sandeep Kesarwani Vs. State of U.P. and others**³.

We have considered the submission advanced by the learned counsel for the parties.

In order to appreciate the contention advanced by learned counsel for the parties, it would be appropriate to reproduce the relevant portion of Section 126, 127 and 135 of the Act and they are as follows:-

"126. Assessment.- (1) If on an inspection of any place or premises or after inspection of the equipments, gadgets, machines, devices found connected or used, or after inspection of records maintained by any person, the assessing officer comes to the conclusion that such person is indulging in unauthorized use of electricity, he shall provisionally assess to the best of his judgement the electricity charges payable by such person or by any other person benefited by such use.

(2) The order of provisional assessment shall be served upon the person in occupation or possession or in charge of the place or premises

in such manner as may be prescribed.

(3) The person, on whom an order has been served under sub- section (2) shall be entitled to file objections, if any, against the provisional assessment before the assessing officer, who shall, after affording a reasonable opportunity of hearing to such person, pass a final order of assessment within thirty days from the date of service of such order of provisional assessment of the electricity charges payable by such person.”

“127. Appeal to appellate authority.-(1) Any person aggrieved by the final order made under Section 126 may, within thirty days of the said order, prefer an appeal in such form, verified in such manner and be accompanied by such fee as may be specified by the State Commission, to an appellate authority as may be prescribed.”

"135.Theft of Electricity.- 1[(1) Whoever, dishonestly, -

(a) taps, makes or causes to be made any connection with overhead, underground or under water lines or cables, or service wires, or service facilities of a licensee or supplier as the case may be; or

(b) tampers a meter, installs or uses a tampered meter, current reversing transformer, loop connection or any other device or method which interferes with accurate or proper registration, calibration or metering of electric current or otherwise results in a manner whereby electricity is stolen or wasted; or

(c) damages or destroys an electric meter, apparatus, equipment, or wire or causes or allows any of them to be so damaged or destroyed as to interfere with the proper or accurate metering of electricity; or

(d) uses electricity through a tampered meter; or

(e) uses electricity for the purpose other than for which the usage of electricity was authorised,

so as to abstract or consume or use electricity shall be punishable with imprisonment for a term which may extend to three years or with fine or with both:”

The Division Bench in **Sandeep Kesarwani** framed three issues and two issues which are relevant for resolving the controversy involved in this petition are as follows:-

"(1) Whether in the cases where theft of electricity is alleged under Section 135 of the Act, 2003, and trial for an offence under Section 135 of the Act, 2003 is pending before the Special Court, an assessment under section 126 of the Act, 2003 can be made by the Executive Engineer.

(2) Whether assessment under Section 126 of the Act, 2003 is not applicable with regard to the cases of theft of electricity under Section 135 of the Act, 2003, and with regard to cases of theft of electricity under Section 135 of the Act, 2003, the civil liability is to be determined only by the Special Court where the trial is pending."

The Division Bench after dealing with provisions contained in Section 126 and 135 of the Act in Chapter-VIII of the Code observed as follows:-

"All instances detailed in Section 135(1) of the Act, 2003 are instances of "unauthorised use of electricity" as defined in explanation (b) of Section 126 of the Act, 2003. The unauthorised use of electricity is genus of which the instances detailed in Section 135(1) of the Act, 2003 are species. Theft of electricity is unauthorised use of electricity done "dishonestly" hence the assessment under Section 126 of the Act, 2003 has to follow whenever unauthorised use of electricity is made by a person or a consumer. The said unauthorised use of electricity becomes theft when coupled with dishonest intention which invites imprisonment. Section 126 of the Act, 2003 does not indicate that assessment shall not be made if the unauthorised use of electricity becomes a theft. Section 135 of the Act, 2003 also does not give any indication that assessment under Section 126 of the Act, 2003 is not to be undertaken, if there is a theft of electricity."

"Code, 2005 thus clearly provides that even in

the cases of theft of electricity under Section 135, of the Act, 2003, the Authorised Officer has to serve a provisional assessment bill and thereafter finalise the assessment. Thus, the provision of the Code, 2005, clearly indicates that for a theft of electricity under Section 135 of the Act, 2003 assessment has to be made under Section 126 of the Act, 2003."

The two issues were, therefore, answered by the Division Bench in the following manner:-

"In view of the foregoing discussions, we are of the view that the submission of the learned counsel for the petitioner that since F.I.R. has been lodged under Section 135 of the Act, 2003 against the petitioner and the case is proceeding for trial before the Special Court, no assessment proceedings could have been undertaken under Section 126 of the Act, 2003 cannot be accepted and both the above issues are answered as follows:

(1) Assessment under Section 126 of the Act, 2003 is to be made even in a case where an offence under Section 135 has been made and is pending for trial before the Special Court.

(2) In the case involving theft of electricity, assessment has to be made under Section 126 of the Act, 2003 by the Authorised Officer. The Special Court trying an offence is to finally determine the civil liability and after determination of civil liability further action is to be taken in accordance with Section 154(6) of the Act, 2003."

It is clear from the aforesaid judgment of the Division Bench in **Sandeep Kesarwani** that even in a case a first information report has been lodged under Section 135 of the Act. Assessment has to be carried out under Section 126 of the Act and that the Special Court trying an offence is to finally determine the liability and after determination of civil liability for further action to be taken in accordance with the provisions of section 154(6) of the Act.

In this view of the matter, it is not possible for the Court to accept the contention of learned counsel for the petitioner that Section 126 of the Act would not be applicable proceedings initiated are under Section 135 of the Act. As noted above, assessment can be carried out only under Section 126 of the Act.

The next issue that arises for consideration is whether the Court should entertain this petition when a statutory alternative remedy is available to the petitioner by filing an appeal under Section 127 of the Act.

The Supreme Court examined this issue in **Executive Engineer, Southern Electricity Supply Company of Orissa Ltd. (SOUTHCO) and another Vs. Sri Seetaram Rice Mill, 2012(2) SCC 108** and observed that the High Court should normally decline to interfere with the final order of the assessment passed by the Assessing Officer in terms of Section 126(3) of the Act in exercise of jurisdiction under Article 226 of the Constitution of India. Such being the position, when the petitioner has a statutory alternative remedy available under Section 127 of the Code, it will not be appropriate for the Court to entertain this petition.

The writ petition, is accordingly, dismissed.

Order Date :- 9.2.2017
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(Dilip Gupta,J.)

(Siddhartha Varma,J.)